

IN THE HIGH COURT OF GUJARAT AT AHMEDABAD
R/SPECIAL CIVIL APPLICATION NO. 5073 of 2018

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RAGINIBEN MAHENDRABHAI RANA
Versus
STATE ELECTION COMMISSIONER

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Appearance:

MS MAMTA R VYAS(994) for the PETITIONER(s) No. 1
for the RESPONDENT(s) No. 1,2,3

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CORAM: **HONOURABLE MR.JUSTICE AKIL KURESHI**
and
HONOURABLE MR.JUSTICE B.N. KARIA

Date : 19/06/2018

ORAL ORDER
(PER : HONOURABLE MR.JUSTICE AKIL KURESHI)

1. The petitioner has made principally two fold prayers that election of respondent no.3 to the State Legislative Assembly may be set aside and the action under section 125A of the Representation of the People Act, 1951 be initiated against him. By way of interim relief, petitioner prays that respondent no.3 be prevented from discharging his duty as member of the Legislative Assembly.
2. Respondent no.3 had contested to the State Legislative Election held in December 2017. For such purpose, he had filled up the form and supporting affidavit as required. According to the petitioner, such affidavit contained inaccurate details and wrong declarations. She therefore, brought these aspects to the notice of Returning Officer under letter dated 11.12.2017. According to her, respondent no.3 had concealed the details of some of the

immovable properties and made false declaration that no Government dues were outstanding. This was before the acceptance of the nomination of the candidate for the State Election. After election was conducted and respondent no.3 was elected, petitioner yet again wrote to the State authority on 26.12.2017. Since no response came, she filed the petition.

3. Section 125A of the Representation of the People Act makes knowingly filing false affidavit by a candidate a penal offence. The circular issued by Election Commission dated 26.4.2018, copy of which is produced on record, however clarifies that aggrieved person can also move proper proceedings before the competent Court. Returning Officer would not have to move the Criminal Court by filing complaint in this regard. Thus clearly the petitioner has the right to move the Criminal Court if she so desires.
4. Her principal prayer for setting aside of the election of the respondent no.3, cannot be granted. Election of a returned candidate can be called in question in terms of provisions made in the Representation of the People Act, 1951. Part-VI of the Act pertains to dispute in relation to elections. Section 80 contained in said part clearly provides that no election can be called in question except by an election petition presented in accordance with the provisions of this part. This statutory provision has constitutional backing under Article 329. As per section 80A, High Court would try an election petition if so brought by aggrieved person. Detailed provisions have been made for conduct of such Election Petition and the grounds on which election can be set aside. For example section 100 pertains to grounds for declaring election to be void. Section 101 pertains to

grounds for which a candidate other than the returned candidate may be declared to have been elected. At any rate the writ petition cannot be entertained for such purpose. This petition is therefore, disposed of accordingly.

(AKIL KURESHI, J)

(B.N. KARIA, J)

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